

24LBCV01737 24LBCV01737

County: los-angeles

Division: Civil Law and Motion

Department: S25

Hearing date: 2026-06-25

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Case Number: 24LBCV01737 Hearing Date: June 25, 2026 Dept: S25

Motion: Plaintiff, Daisy Leah Rosas Garcia, a minor, by and through her Guardian ad Litem, Fernando Rosas' Petition to Approve Minor's Compromise

Moving Party: Plaintiff, Daisy Leah Rosas Garcia, a minor, by and through her Guardian ad Litem, Fernando Rosas ("Plaintiff")

Responding Party: None

Tentative Ruling

The Court has reviewed the proposed settlement and finds that the settlement itself is fair and reasonable. The minor claimant here has agreed to dismiss her claims; Defendants Magella Medical Group, Inc. will pay \$130,000.00 and Long Beach Memorial Medical Center, Brittany File, M.D., Xiang Feng, M.D., and Kaneshiro, D.O., will pay \$130,000.00; a total of \$260,000.00 will be paid to minor claimant. (Pet. ¶ 10.a, Attachment 13a [Hemesath Declaration] ¶ 6(f).) The amount of attorney's fees requested, representing 33 percent of the gross settlement to minor claimant, is \$83,164.60. (Pet. ¶ 13.a, Attachment 13a ¶ 24(d).) The Claimant, through her guardian agreed to a 33 percent contingency fee arrangement; attorney fees are dictated under MICRA's Business and Professions Code section 6146. (Pet., Attachment 13a ¶¶ 22, 24, Attachment 17a [Retainer Agreement] ¶ 6.)

The petition seeks to use \$245.22 of the settlement proceeds to pay for medical expenses. (Pet. ¶ 12, Attachment 12b(4)(c), Attachment 13a ¶ 27.) The petition further seeks \$7,986.07 for expenses (other than medical expenses) that have been incurred or advanced. (Pet. ¶ 13.b, Attachment 13a ¶ 24(d), Attachment 13b.) Claimant will receive \$168,604.11 after payment of all fees and expenses. The Court finds that Plaintiff's counsel has set sufficient facts breaking down and explaining the legal fees and costs incurred in litigating this matter. (Cal. Rules of Court, rule 7.955(b).)

Plaintiff, DAISY LEAH ROSAS GARCIA, a minor, by and through her Guardian ad Litem, Fernando Rosas' Petition to Approve Minor's Compromise is GRANTED.

Motion: Plaintiff, Faith Escamilla-Garcia, a minor, by and through her Guardian ad Litem, Evelyn Garcia's Petition to Approve Minor's Compromise

Moving Party: Plaintiff, Faith Escamilla-Garcia, a minor, by and through her Guardian ad Litem, Evelyn Garcia ("Plaintiff")

Responding Party: None

Tentative Ruling

The Court has reviewed the proposed settlement and finds that the settlement itself is fair and reasonable. The minor claimant here has agreed to dismiss her claims; Defendants Magella Medical Group, Inc. will pay \$130,000.00 and Long Beach Memorial Medical Center, Brittany File, M.D., Xiang Feng, M.D., and Kaneshiro, D.O., will pay \$130,000.00; a total of \$260,000.00 will be paid to minor claimant. (Pet. ¶ 10.a, Attachment 13a [Hemesath Declaration] ¶ 6(d).) The amount of attorney's fees requested, representing 33 percent of the gross settlement to minor claimant, is \$83,164.60. (Pet. ¶ 13.a, Attachment 13a ¶ 24(b).) The Claimant, through her guardian agreed to a 33 percent contingency fee arrangement; attorney fees are dictated under MICRA's Business and Professions Code section 6146. (Pet., Attachment 13a ¶¶ 22, 24, Attachment 17a [Retainer Agreement] ¶ 6.) The petition seeks to use \$245.22 of the settlement proceeds to pay for medical expenses. (Pet. ¶ 12, Attachment 12b(4)(c), Attachment 13a ¶ 27.) The petition further seeks \$7,986.07 for expenses (other than medical expenses) that have been incurred or advanced. (Pet. ¶ 13.b, Attachment 13a ¶ 24(b), Attachment 13b.) Claimant will receive \$168,604.11 after payment of all fees and expenses. The Court finds that Plaintiff's counsel has set sufficient facts breaking down and explaining the legal fees and costs incurred in litigating this matter. (Cal. Rules of Court, rule 7.955(b).)

Plaintiff, FAITH ESCAMILLA-GARCIA, a minor, by and through her Guardian ad Litem, Evelyn Garcia's Petition to Approve Minor's Compromise is GRANTED.